# The Making of Indian Constitution (I)

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# Introduction

- The power was centralised under the Government of India Act 1858 - gradually “shared” through limited reforms - Minto-Morley Reforms (1909); Montague-Chelmsford Reforms (1919); Government of India Act (1935) - but the power was always within the Imperial frame (British government).
- The Government of India Act (1935) created a provincial autonomy and blue print for the federation - the ultimate authority was held with the British Parliament and the Indians did not exercise true constituent power.
- The Freedom fighters demanded for a body of Indians to draft their own constitution; The demand for a Constituent Assembly became the central demand during the 1930’s and 1940’s. - the leaders across the spectrum argued that only a representative body could legitimately frame the basic law.

# Emergence of Constituent Assembly

- **Cabinet Mission Plan** - 1946 - members indirectly elected by the provincial legislatures on a restricted franchise under the Government India Act 1935.
- The Cabinet mission plan - key moment when the British accepted the idea of an Indian-made constitution, though still trying to preserve unity and protect imperial interests.
- The Constituent Assembly elected indirectly by the members of the provincial legislatures; The seats distributed on a communal basis (General, Muslim, Sikh) with British Indian provinces; Princely States sent their representatives through nomination rather than direct election.
- The Constituent Assembly was meant to express popular sovereignty, yet it was born within and constrained by the colonial scheme and it was elected through a high restricted franchise and communal allocation.

- The Constituent power exercised under colonial legal reforms but claiming popular sovereignty; There were distinct centres of power, Constituent Assembly-Congress-Interim Government
- The Cabinet Mission came to Delhi with the purpose pf assisting ‘Viceroy in setting up in India, a machinery by which Indians can devise their own constitution’.
- Indian National Congress called for a constituent assembly and Indian self-determination; Jinnah and Muslim League did not agree with the the idea, preferring British presence in India as a deterrent to Congress power, which they said would be synonymous with Hindu domination.
- Congress demanded election of members to Assembly based on Adult Suffrage; Terming it cumbersome and slow, the plan provided that the provincial legislatures elect the members.
- **PLAN -** The provinces were grouped geographically into three regions; one predominantly Hindu, one predominantly Muslim and third where population of two communities would be nearly equal; The provincial representatives to the All-India Constituent Assembly, after a preliminary meeting of that body, would meet in three group assemblies to frame constitutions or their component provinces and, if desired, for their group as well.
- Among these constitutions, would be distributed the functions of government other than the three reserved for the centre. When all this was done, the representatives would return from the group constituent assemblies to the All-India Assembly to draft the national constitution.

- After the mission made its plan public, detailed negotiations both league and Congress accepted it but publicly and privately recorded their reservations.
- But because of ‘grouping’ and not trusting Congress intentions in Assembly, Muslim League boycotted the Assembly - **The Cabinet Mission failed.**
- Viceroy Wavell tried to reconcile the groups with disparate views and quieting the suspicions. On Viceroy’s invitation, Congress formed the Interim Government, Nehru was its head as Vice-President of Viceroy’s executive council.
- Muslim League continued its boycott, When the Assembly met in December, representatives of Muslims were absent.
- The Assembly restricted itself to the preliminary own of electing committees to draft fundamental rights, a federal system and opening negotiations with the princely states.
- India was partitioned into India and Pakistan. The Act passed in British Parliament came into effect on August 15, 1947.

# Composition, Representation and Structure

- The membership of Congress in the Constituent Assembly and outside held social, economic and political views ranging from the reactionary to the revolutionary; the leaders of the Assembly were Independence movement leaders.
- The majority in Constituent Assembly resulted from December 1945 provincial legislature elections and from Partition; The outcome of the elections in 1946, where Congress won majority, it filled 208 of the total 296 allowed to provinces. It had a majority of 69 percent and after partition, it increased to 82 percent.
- Initially, the total members were 389 (from British Indian Provinces and Princely States); After partition, the Assembly was reduced from 389 to 299 members.
- The Assembly functioned as both a constitution-making body and later, as the provincial legislature of independent India - members were simultaneously framers and day-to-day law makers.
- Constituent Assembly - one-party assembly; Congress dominated the Assembly - One party dominated but the party was internally diverse, containing conservatives, socialists, centrists and regional leaders; Non-Congress members including Scheduled Caste leaders, members from small nationalist parties, independents but they did not control agenda.

- The Assembly included lawyers, landlords, industrialists, trade unionists, social reformers and a few women members (symbolically important) Representation from Scheduled Castes, Scheduled Tribes, Christians, Sikhs, Parsis, Anglo-Indians, Muslims among others - crucial for broad legitimacy.
- The members were not directly elected by all citizens - they were chosen by members of provincial legislatures, elected under the 1935 Act
- Tension between electoral under-representation (limited franchise, princely nomination) and sociological inclusiveness.
- The election of Constituent Assembly members was by the provincial legislatures, the Congress high command adopted much the same policy; i.e., let the provincial machinery select its own members; this preserved the diversity present in the legislatures and added to it in an important way.
- There was no universal adult franchise and the electorate for the provincial legislatures was restricted by property, education and tax qualifications.As there was communal allocation of seats and princely nominations, some communities were structurally over represented or under represented.
- The legitimacy for the members came from their deeply imbedded work in the national movement with histories of mass mobilisation and imprisonment.
- The Assembly operated with substantial publicity; debates were reported and commented on, creating a feedback loop with broader public.

# Committee System

- The Assembly adopted an extensive Committee System. Why Committee System? And not debates in full session?

➡Practical Reasons:

- There were hundreds of members and a vast range of subjects: federal structure, rights, minorities, finances, language, judiciary, public service, tribal areas etc.
- Detailed drafting work - cause wording, harmonising different reports, checking consistency - requires sustained attention that is difficult to achieve in large plenary settings
- Committees allow division of labour: smaller group focus on specific topics, consult experts and documents and bring reasoned proposals to full assembly.

➡**Political Reasons:**

- Committees make negotiation easier, groups can bargain and compromise away from the glare of the full house and the press, then present agreed drafts.
- They provide a structured way to mange intra-party and inter-group disagreement (between different factions within Congress or between majority and minority representatives).

➡**Conceptual Reasons:**

- Introduce the idea that committees were not just ‘technical’ bodies; they are arenas where constitutional ideas are worked out in detail.
- The decisive choices - about the strength of centre, the nature of fundamental rights, protection of minorities etc were crystallised in committee rooms rather than on the floor.

➡**Categories of Committees:**

➡Political/Constitutional Design Committees - concerned with basic architecture of the State (Centre, provinces, rights, minutes, princely status)

- Drafting and Procedural Committees - turned political decisions into legal text and structures in Assembly own functioning
- Subject Specific Committees - dealt with particular fields such as finances, rules of business and tribal and excluded areas etc.

# Committees

- Constituent Assembly - 8 major Committees -
- **Political Committees** - Union Powers Committee; Union Constitution Committee; Provincial Constitution Committee.
- **Advisory Committee and Its SubCommittees -** Advisory Committee on Fundamental Rights, Minorities, and Tribal and excluded Areas; Sub Committees - Fundamental Rights Sub-Committee, Minorities Sub-Committee.
- **Drafting and Procedural Committees** - Drafting Committee; Rules of Procedure Committee.

➡**Political Committees:**

➡**Union Powers Committee** - Chair Jawaharlal Nehru;

- Mandate - To recommend which subjects should fall within the jurisdiction of the Union (Centre), which should go to provinces and how to handle residuary powers
- Orientation - A Strong Union - reflecting fears of fragmentation after partition, the need to integrate princely states and concerns about secessionist tendencies
- Security, Economic planning, and national integration influenced the push towards centralisation.

➡**Union Constitution Committee** - Chair Jawaharlal Nehru

- To design the institutional framework of the Union government - executive, legislature and their mutual relations
- Questions considered - Whether India should adopt a parliamentary or presidential system; Role and powers of the President versus the Prime Minister and Cabinet; Bicameralism at the union level and the shape of the second chamber (Rajya Sabha)
- Committee moved India towards a parliamentary system, adapting but not slavishly copying the Westminster model.

➡**Provincial Constitution Committee** - Chair Vallabh Bhai Patel

- Mandate - to examine the structure of provincial governments and their relationship with the Centre.
- To set the template for the state governments within the federal structure, considering questions like gubernatorial (relating to governor of state), provincial legislatures and local government.
- Committee work intersected with political negotiations over integration of pricey states and their eventual reorganisation of states along linguistic lines (which happened later).

➡**Advisory Committee and Sub Committees**

➡**Advisory Committee** - Chair Vallabh Bhai Patel

- Mandate to recommend provisions relating to fundamental rights, the protection of minorities, and arrangements for tribal and excluded areas
- Included representatives of various communities and regions, reflecting the sensitivity of the subject-matter

➡**Fundamental Rights Sub-Committee** - to draft a list of rights that would bind the future state

- Issues considered - Which rights will be justiciable (enforceable in courts); Whether to include socio-economic rights as enforceable rights or as guiding principles; How to balance individual freedoms with social reforms and public order. (Enforceable Fundamental Rights and Non-enforceable Directive Principles)

➡**Minorities Sub-Committee** - political and cultural safeguards for religious and other minorities.

- Context - Communal tensions and partition violence; disputes over separate electorates, reserved seats and veto mechanism

- Evolution - Moved away from separate electorates as they were seen divisive; retention and refinement of cultural and educational rights for minorities.
- Reflected in provisions of religious freedom, cultural autonomy, and minority educational institutions.
- Attention to areas with distinct tribal populations which were classified as ‘excluded’, ‘partially excluded’ under the colonial rule.
- To protect vulnerable communities and to integrate them into new constitutional order - eventually Fifth and Sixth Schedule Areas.
- The advisory committees work was the assembly’s attempt to balance unity and diversity; majority rule and minority protections; individual and group rights.

➡**Drafting and Procedural Committees**

➡**Drafting Committee** - Chair B.R. Ambedkar

- Small group of prominent lawyers and political figures, supported by legal experts and staff.

- Function - To take reports of the Union, Provincial, Advisory and other committees; Convert them into structured draft consitution with numbered articles and schedules; reconcile inconsistencies and ensure overall coherence.
- The drafting committee did not invent the Constitution from scratch, it worked with and through the political choices made in the earlier committees.

➡**Rules of Procedure Committee** - to frame the rules by which Assembly would conduct its business.

- Features - Procedures for giving notice of motions and amendments; time allocation for debates; methods of voting and division.
- There were other subject specific Committees - Finance and Staff Committee; Language-related Bodies.
- The existence of these committees show that the making of the Constitution is not only about politics but also about administrative and technical details.